

**UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF VIRGINIA
NORFOLK/NEWPORT NEWS DIVISIONS**

Plaintiff

v.

Case Number: _____

Defendant

**NOTICE OF OPPORTUNITY TO CONSENT TO PROCEED
BEFORE A UNITED STATES MAGISTRATE JUDGE**

In accordance with the provisions of 28 U.S.C. § 636(c) and Fed. R. Civ. P. 73, you are notified that a United States Magistrate Judge of this Court is available to conduct any and all proceedings in the case, including a trial; order the entry of final judgment; and conduct all post-judgment proceedings. Exercise of this jurisdiction by a Magistrate Judge is permitted only if all parties voluntarily consent. You may, without adverse substantive consequences, withhold your consent, but this will prevent a Magistrate Judge from exercising jurisdiction over the case.

If a *pro se* party wishes to consent to a Magistrate Judge handling their case, that party should sign and file this consent form. But in any case where all parties have counsel, **this form should not be filed on the docket unless all parties consent to the exercise of jurisdiction by a Magistrate Judge.**

An appeal from a judgment entered by a Magistrate Judge shall be taken directly to the United States court of appeals for this judicial circuit, in accordance with 28 U.S.C. § 636(c).

CONSENT TO PROCEED BEFORE A UNITED STATES MAGISTRATE JUDGE

In accordance with the provisions of 28 U.S.C. § 636(c) and Fed. R. Civ. P. 73, the parties in this case hereby voluntarily waive their right to proceed before a United States District Judge and consent to have a United States Magistrate Judge conduct any and all further proceedings in this case, including the trial; order the entry of a final judgment; and conduct all post-judgment proceedings.

Party Name	Signature of Counsel or <i>Pro Se</i> Party	Date
_____	_____	_____
_____	_____	_____
_____	_____	_____
_____	_____	_____